

4 Confronting Injustice

EVEN if there is a general moral duty to obey the just laws of a legitimate regime, it remains an open question how one should respond when confronted with either an unjust law or an illegitimate regime. The answer to this question will in many cases be quite complicated. At a minimum, though, I contend that there is a general obligation to obey neither unjust laws nor any law of an illegitimate regime. More ambitiously, I submit that there are potentially weighty moral reasons to actively resist unjust laws and illegitimate regimes.

Illegitimate Regimes

In developing my argument for the duty to obey the law, I have been assuming throughout that the laws in particular were just and that the regimes in general were legitimate. In this section, I want to explore whether we are similarly obligated to obey the legal commands of an illegitimate regime. I will advance a number of theses, but the two most basic are that (1) there is no general duty to comply with the laws of an illegitimate regime, and (2) there are actually moral reasons to resist illegitimate governments.

Here I will restrict my discussion to two countries: Iraq under Saddam Hussein, which I will assume was an illegitimate military dictatorship, and apartheid South Africa, which I understand to have been an illegitimate regime that wrongly oppressed blacks. Moreover, unless I specify otherwise, when I speak of a law

in this section, I mean to refer to a just law or, if one prefers, a law that *would be* just if it were imposed by a legitimate regime. I make this simplifying assumption so as not to confuse the issues of a regime's illegitimacy with a particular law's injustice.

First, consider whether the average citizen would have a general duty to obey the law in Saddam Hussein's Iraq. At first glance, one might think that the answer must be "Yes." After all, despite its atrocious record on human rights, this regime was able to secure a stable peace, thereby eliminating many of the perils of the state of nature. This response would be too quick, however, because it fails to appreciate the exorbitant costs attached to being a citizen in such a country. One can explain this point in terms of the analogy invoked earlier of Beth commandeering Cathy's car in order to rush Amy to the hospital. Specifically, while Beth might be justified in *borrowing* Cathy's car in these extreme circumstances, Beth may not *steal* Cathy's car even if she subsequently uses it, among other purposes, to take Beth to the hospital. The reason for this is straightforward: Although Beth needs to use Cathy's car in order to save Amy, she does not need to keep it permanently. And because Beth is permitted at most to do those things necessary to complete her samaritan mission, she cannot invoke Amy's peril to justify stealing the car. Of course, the analogous reasoning applies to Cathy's obligations. Because having one's car stolen is unnecessary to save Amy, Cathy would have no duty to surrender her keys to a thief like Beth.

Insofar as Hussein's government placed so many unnecessary costs upon its citizens, I think its imposition was analogous to Beth's stealing rather than borrowing Cathy's car. If so, the analogy can help us identify at least three explanations for why those subject to Hussein's government had no obligation to obey its laws. First, according to the theory advanced here, one's duty to obey the law is conceived as a samaritan chore. If a government exploits its citizens for the rulers' personal gain, however, then it is designed to transform the constituents' burdens into benefits for the elite rulers. As such, it places unreasonable costs on its subjects, and thus obeying the law cannot qualify as a samaritan chore. A second and related explanation of the absence of the duty

to obey the law can be given in terms of fairness. Because the duty to obey the law is understood as one's *fair share* of a communal samaritan project, it seems clear that the profound unfairness of Iraq's laws would have undermined any chance that they might have obligated those they constrained. Since the legal institutions were designed to unfairly profit Hussein and his cronies, it is no surprise that a view featuring fairness would not require one to support such an unjust distribution of burdens and benefits. Third and perhaps most important, regardless of the specifics of one's favored account of the duty to obey the law, it would be awkward to suppose that one can be obligated to support one's own oppression. One would be loath to suggest that a slave could have a duty to support the institution of slavery, for instance. This is relevant to our discussion here, of course, because Hussein's regime oppressed its constituents in something like the way that slavery oppresses slaves. If so, then one could not affirm an Iraqi's obligation to obey the law unless one were willing to accept that people may be morally required to do their part to support those institutions that enslave or otherwise brutally oppress them. For a variety of compelling reasons, then, it seems clear that there is no general duty to obey the law in oppressive military dictatorships like Saddam Hussein's Iraq.

Let us turn now to apartheid South Africa. I presume that it is obvious that the blacks in this country had no general duty to obey the law for the same reasons that Iraqis had no such duty: Legal obedience would have been unreasonably costly, unfair, and tantamount to contributing to their own oppression. It is less obvious, however, whether the average white citizen should have obeyed the law. After all, the demands of citizenship were not unreasonably costly or unfair to the whites, nor did the legal institutions oppress white citizens any more than slavery oppresses the slave owners. In view of this, one might conclude that while the blacks had no duty to obey the law in apartheid South Africa, the whites did. This line of thinking should be rejected, however, because it underestimates the significance of supporting an institution that oppresses others. In particular, while it is true that obeying the law was not too costly for the whites, legal obedience in such a

case was not merely doing one's part to support institutions that eliminated the perils of the state of nature. When the same legal system that secured political stability was also used to oppress blacks, obeying the law involved playing a part in perpetuating injustice. And since one cannot have a duty to support this type of horrible oppression, the whites cannot have had a duty to obey the laws of a country like apartheid South Africa.

It is worth emphasizing that this account of the whites' lack of obligation does not require one to deny that the South African government, by securing a stable political environment, supplied extremely important benefits. Reflecting on the obligation to keep promises might help illustrate this important point. It is widely believed that, although there is a general duty to keep promises, this does not apply to a promise to do something unjust. If Amber promises Betty that she will murder Carol, for instance, few think that Amber would actually have such a duty; instead, it is standard to presume that the injustice of murdering renders Amber's promise invalid. The crucial thing to note for our purposes is that, because promises to commit an injustice do not bind, it is not necessary to deny that Amber made such a promise. I think that we should reason along the same lines about the possibility of there being a duty to obey the laws of an unjust regime. That is, we do not need to deny that these legal institutions supply important benefits because we can assert that the injustice of the system renders invalid what would otherwise be a moral duty. Thus, just as Amber's promise cannot be binding when it requires her to perform an injustice, a legal regime's benefits cannot bind its constituents when legal obedience would involve supporting oppression. If this is right, then denying that there is a duty to support beneficial but unjust governments is no more problematic than denying that there is a duty to keep promises to perform unjust actions.

Expanding upon this last point, not only did citizens of countries like Iraq and apartheid South Africa have no duty to obey the law, it seems more plausible to posit the existence of moral reasons to *resist* such illegitimate regimes. Indeed, the idea here is essentially that which I stressed in Chapter 1 when criticizing

philosophical anarchists for failing to own up to the radical implications of their views. There I suggested that, to be consistent, philosophical anarchists should not only deny the duty to obey the law, they should acknowledge the presumption in favor of opposing the government. My argument was that, given the voluntarist's aversion to nonconsensual coercion, she would seem committed to insisting that all of us have moral reasons to help eliminate such coercion. Philosophical anarchists like Simmons may be right to protest that there is no *general and absolute duty* to fight governments in every possible instance, but this does not undermine the more modest thesis that there are always *moral reasons* to oppose governments. What I am suggesting here is that the same reasoning applies in the case of illegitimate regimes. Not only did the oppression of states like Iraq and South Africa explain why their subjects had no general duty to obey their laws, it gave their constituents moral reasons to undermine the government's authority and thus to help eliminate the oppression. These moral reasons do not necessarily translate into a general and absolute duty to resist the illegitimate governments in all instances (among other things, resistance in certain circumstances might be too costly to be demanded by duty), but they always provide a moral presumption in favor of doing so. In short, just as the reasoning motivating philosophical anarchism implies that we have reason to subvert *all states*, the premises supporting my account of political legitimacy imply that we had reason to resist *illegitimate states* like Saddam Hussein's Iraq and apartheid South Africa.

Things are more complicated than they might at this point appear, however, because the reasons *against* obeying the laws of an illegitimate regime must be put on the scales with various moral reasons that may exist *in favor of* obeying any given law. As a consequence, it might be that a citizen should act as the law directs in some situations *even though the commands come from an illegitimate regime*. In other words, the reasons to resist illegitimate states are always potentially defeasible, and citizens are responsible for determining on a case-by-case basis whether they are in fact defeated. (Indeed, this is the wisdom in Simmons's assessment that

"The practical stance with respect to the state . . . should be one of careful consideration and thoughtful weighing of all of the reasons that bear on action in a particular set of political circumstances. The illegitimacy of a state . . . is just one moral factor among many bearing on how persons in that state should (or are permitted to) act."¹)

Having established that (1) there is no general duty to obey the laws of illegitimate regimes, (2) there are moral reasons to resist illegitimate states, and (3) the moral reasons to oppose illegitimate regimes are defeasible and thus must be weighed against countervailing considerations on a case-by-case basis, we now see how complex the moral matters of legal obedience can be for conscientious constituents of illegitimate states. Because I could not construct a better analogy to clarify such a complicated set of factors, let me instead quote at length from Chaim Gans.

Picture a team of surgeons who share a single scalpel, and a gang of robbers who share a single switchblade. We clearly have a general obligation to preserve the scalpel and no such general obligation to preserve the switchblade. Suppose, though, that the robbers use the switchblade for other purposes besides robbery. Suppose they use it to combat a rival gang that specializes in murder. This fact may give rise to a general duty not to harm the switchblade. So far so good as to our general duties to the scalpel and the switchblade. These must be carefully distinguished, though, from the decisions which we should make about particular references to these instruments. Such decisions may be *affected* by the existence or non-existence of general duties, but they are not *dictated* by these duties. If a member of the surgery team tries to use the scalpel to slit open a personal letter addressed to one of his colleagues, this certainly isn't reason enough to damage the scalpel. The general duty to preserve the scalpel, a duty which we have acknowledged, overrides the value damaged by the scalpel's presently intended use, that is, the value of privacy. However, if one of the team members attempts murder with the scalpel, and the only means of prevention is damaging the scalpel, then there is then undoubtedly very good reason to do so. This damage will

1 Simmons, *Justification and Legitimacy*, p. 109.

not be caused because of the absence of duty to preserve the scalpel. It will be caused because this duty is overridden under the present circumstances by the value to be damaged through the scalpel's specific imminent use. Now, back to the bandits. Though there may be no reason to preserve their knife, this doesn't mean that there is no reason to preserve those goods produced by it that are not immoral. If, besides being used for robbery, the switchblade was also used to prepare food, the fact that it need not be preserved doesn't mean that the food need not be preserved. This last point may be likened to the matter of the good laws produced by a corrupt legal system.²

Gans's analogy is quite helpful because it reminds us that legal regimes and the particular laws of which they are comprised are powerful instruments and, as such, can be used for good and evil. Moreover, merely because a law is part of a corrupt regime, it does not follow that this particular law is useless or that the evil of the regime necessarily trumps the utility of the law. As Gans and Simmons both point out, there is no reason to rule out in advance that the importance of acting in accordance with a particular law can in some cases outweigh one's reasons to resist a generally illegitimate regime. Finally, as much as we might like one, there appears to be no simple algorithm capable of generating an exhaustive list of the conditions in which the importance of a particular just law takes precedence over the injustice of the system as a whole, and vice versa. In many instances, those governed by corrupt institutions must rely upon their moral sensibilities as they weigh competing moral considerations on a case-by-case basis.

One might despair because the arguments in this section are so complicated and fail ultimately to arrive at a simpler conclusion, but it seems to me that the morality of legal obedience in illegitimate regimes is an irredeemably complex matter, and any theory that glosses over the complexities would miss much of moral importance. Nonetheless, there are two basic points that can safely be extracted from this difficult section: (1) there is no general duty to obey the laws of an illegitimate regime, and (2)

2 Chaim Gans, *Philosophical Anarchism and Political Obedience* (Cambridge: Cambridge University Press, 1992), 107–8.

there are general moral reasons to disobey the laws of illegitimate states.

Unjust Laws

Let us now explore how a citizen of a legitimate state should respond when confronted with an unjust law. I am afraid that the moral reasoning here is no less complex than for someone facing a just law in an illegitimate regime. The good news, however, is that these two matters are in a sense mirror images of one another, so the work we have just done has helped to clear the path for our present inquiry. I will once again advance a number of subsidiary claims, but the basic theses I hope to defend in this section are that (1) there is no general duty to obey an unjust law of a legitimate regime, and (2) there are actually moral reasons to disobey these unjustified legal commands.

In pursuing this question, I will presume that Australia's government qualifies as a legitimate regime. Thus, following my analysis of the duty to vote, I will take Australia's legal requirement of voting as my example of an unjust law imposed by a legitimate regime. Given that the costs of voting are typically minimal and Australia's penalty of \$50 is not terribly harsh, this is not an example of an utterly wicked and oppressive law. In some ways this is helpful, though, since it makes it easier to see how a particular unjust law need not by itself render the entire system illegitimate. The question I would like to address, then, is whether Australians have a duty to obey the law requiring them to vote, even though this law is unjust.

It is tempting to answer this question in the affirmative. After all, as a legitimate regime, the Australian government performs extremely valuable functions without making unreasonable demands on its citizens, so taking part in democratic elections hardly seems too much to ask. I would urge us to resist this conclusion, though. In my view, it is important to bear in mind that a government's mandate to perform certain crucial functions does not give it a blank check to treat its constituents however it chooses. The distinction between just and unjust laws is an important one,

and there is nothing about affirming a citizen's duty to obey the former that prohibits one from denying a citizen's obligation to comply with the latter. To appreciate the force of this point, let us once again revisit the analogy of Beth commandeering Cathy's car in order to rush Amy to the hospital. Here I want to emphasize that one's conviction that Beth is justified in borrowing Cathy's car in no way commits one to the view that Beth can also take one of Cathy's compact discs out of the car when she has completed her run to the hospital. Even if it is true both that Beth has performed an extremely valuable service in saving Amy's life and that the loss of one compact disc is fairly insignificant in comparison to Amy's life, neither fact in any way entitles Beth to Cathy's compact disc. The essential point is that, even if Beth has a right to certain things necessary to saving Amy's life, she is entitled to *only* those things necessary to do so. As a consequence, it seems entirely appropriate to insist that, while Cathy has a moral duty to loan Beth her car, she has no duty to surrender any of the compact discs therein.

I hope this analogy makes the corresponding conclusions in the political realm more apparent. Even if the Australian government is entitled to impose itself upon its citizens in various ways in order to perform a number of extremely important functions, it is entitled to impose itself in only those ways necessary to do so. **And if I was right to conclude in the previous chapter that sustaining a healthy democracy is not important enough to justify nonconsensual coercion, then there is nothing problematic about defending an obligation to obey just Australian laws while at the same time denying any duty to obey an unjust law like that which legally requires citizens to vote.** For this reason, I deny that there is a general duty to obey the unjust laws of a legitimate regime.

Notice that not only is there no general duty to obey unjust laws, there are moral reasons to resist them. This is true of unjust laws for the same reasons we canvassed in connection with illegitimate regimes: It is not only possible in theory to distinguish between just and unjust laws, it is important in practice to empower a legitimate state to impose the former and to deter a government from imposing the latter. The reasoning in both cases

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is straightforward. The moral reasons all of us have to promote justice should move us to support those institutions that make the world more just and to resist those that make it less just. Because unjust laws make the world less just, clearly we have moral reasons to oppose them.

Matters are more complicated still, however, because disobeying a given law not only undermines that particular law, it also undercuts the authority of the entire system of which that law is a part. This provides no cause for concern when one is disobeying an unjust law imposed by an illegitimate regime, but it does raise issues if one is contesting an unjust law in a legitimate regime, like the Australian government's requirement that all citizens vote. In particular, while one should be pleased that one's disobedience is playing a part in weakening the state's capacity to require citizens to vote, one might be worried that one's disobedience is also thereby undermining the Australian government's standing as a whole. This latter effect is worrisome, of course, because legitimate states are precisely the types of institutions that one has moral reasons to support. One therefore typically has conflicting moral reasons when faced with an unjust law in a legitimate regime because (dis)obedience in such cases simultaneously affects both the bad capacities of the unjust law and the good capacities of the system as a whole. Thus, just as constituents in an illegitimate regime confront a difficult situation when faced with a just law, citizens of a legitimate regime must weigh competing reasons when confronted with an unjust legal command. In the latter case, the moral reasons generated by the legitimacy of the regime should motivate one to obey the law, and those reasons stemming from the injustice of the particular law should move one to disobey the law.

Once again, there appears to be no simple algorithm to help one adjudicate all such conflicts in advance. Instead, like someone struggling to decide whether to obey a just law in an illegitimate regime, the best that a citizen of a legitimate state can do when faced with an unjust law is to conscientiously weigh the competing considerations and act upon those that appear most stringent. It may not always be obvious in which direction the balance of

reasons points, but perhaps we can at least get a helpful glimpse of the process by considering how an Australian citizen should react to the legal duty to vote. On the one hand, the injustice of the law requiring citizens to vote should be opposed; thus, one might be inclined to stay away from the polls in order to do one's share of a larger effort to undermine that particular law's authority. On the other hand, there are several reasons to resist this conclusion. First and most obviously, the legitimacy of the Australian government gives one moral reasons to refrain from acting in ways that will undermine its capacity to perform its requisite functions. Secondly, compared with other unjust laws, the legal requirement to vote is a relatively benign one because it both requires relatively little of its citizens and is designed to promote a good cause (promoting healthy democracy is much better than fostering racism, for instance). Third and finally, **it is important to bear in mind that virtuous citizens would vote; thus, whatever reasons one has to be a virtuous citizen happen to weigh against breaking this particular law.** As a result, I am inclined to conclude that, while in this instance there is neither a duty to vote nor a duty to disobey the law requiring one to vote, the balance of moral reasons favors voting. Let me add, however, that perhaps the most virtuous citizen would not only vote but work via various other channels to get the government to repeal its unjust law requiring people to vote.

I regret that this analysis of a citizen's moral responsibilities in the face of unjust laws is just as complicated as the preceding discussion of illegitimate regimes. Once again, though, we are in a position to close by underscoring two basic claims: **(1) there is no general duty to obey the unjust laws of a legitimate state, and (2) there are general moral reasons to disobey unjust laws.**

Civil Disobedience

Before concluding, I would like to comment briefly on a citizen's responsibility to either practice or abstain from civil disobedience. Many people list various conditions that must be satisfied in order for civil disobedience to be permissible (e.g., that it be principled,

public, and nonviolent). I agree that these conditions are often illuminating, but I deny that they are normally required to justify its practice. On the contrary; I think civil disobedience quite often is easily justified and that the conditions theorists typically list are better thought of as ideals to approximate if one seeks to have one's message received in the most sympathetic and effective light. In fact, I would suggest that civil disobedience is not only easy to justify, it is also seldom obligatory because it is in many cases too costly to the civilly disobedient. Often the civilly disobedient are to be applauded as virtuous citizens, and the only reason people writing on this topic have not always appreciated this is that they have been overly impressed with the authority of law, even the unjust laws of illegitimate regimes. To see this, notice how people responded to Martin Luther King, Jr.'s campaign of civil disobedience.

Many condemned King, even while acknowledging that his ends were laudable, simply because he advocated deliberately breaking the law. Louis Waldman, for instance, argued as follows:

Those who assert rights under the Constitution and the laws made thereunder must abide by that Constitution and the law, if that Constitution is to survive. They cannot pick and choose; they cannot say they will abide by those laws which they think are just and refuse to abide by those laws which they think are unjust. . . .

The country, therefore, cannot accept Dr. King's doctrine that he and his followers will pick and choose, knowing that it is illegal to do so. I say, such doctrine is not only illegal and for that reason alone should be abandoned, but that it is also immoral, destructive of the principles of democratic government, and a danger to the very civil rights Dr. King seeks to promote.³

In short, King should be criticized because it is always and in every case impermissible to deliberately break the law.

3 Louis Waldman, "Civil Rights – Yes: Civil Disobedience – No (A Reply to Dr. Martin Luther King)," in Hugo Adam Bedau (ed.), *Civil Disobedience: Theory and Practice* (New York: Pegasus Books, 1967), 106 and 107. Quoted in James Rachels, *The Elements of Moral Philosophy* (Boston: McGraw-Hill, 1999), p. 156.

A less severe position adopts a more permissive stance with respect to civil disobedience as long as it satisfies various conditions. As one might expect, there is no consensus regarding which particular conditions must be satisfied, but it has been common to suggest that the disobedience must be (1) principled, (2) public, (3), nonviolent, (4) expected to be efficacious, (5) resorted to only after sufficient attempts to reform via legal means have proved ineffective, and (6) engaged in by only those willing to accept the legal punishment for breaking the law. According to some, then, King's civil disobedience was morally permissible only because he broke the law for principled reasons rather than for personal gain; he did so in a public rather than a clandestine fashion; he never resorted to violence against either the authorities or innocent third parties; he reasonably expected his disobedience to be an effective catalyst for legal reforms; he pursued legal avenues before advocating civil disobedience; and he did not try to escape criminal prosecution and punishment.

I agree that King should not be criticized for breaking the law, but I deny that his behavior was permissible only because it satisfied some subset of the preceding conditions. On my view, King was morally at liberty to break the particular laws he disobeyed simply because they were unjust. Moreover, not only did King have no duty to obey these particular laws, he actually had moral reasons to oppose them. I would not go so far as to say that he had a duty to break these laws (and certainly he had no obligation to break them in the exemplary fashion that he did), however, because it is asking too much to demand that someone suffer the consequences that typically attend such disobedience. As I see it, King was an exemplary citizen because he did not merely disobey the laws, he worked hard and sacrificed mightily so that these laws would be reformed and the government as a whole would become more just. Any conscientious person would be troubled by the unjust and inequitable laws against which King fought, but only an extraordinarily virtuous citizen would dedicate his life to reforming the corrupt legal institutions in King's selfless fashion. Indeed, King's virtue seems so striking as to be self-evident to all those who do not overestimate the

authority of law. Once one distinguishes between just and unjust laws and recognizes our reasons to support the former and resist the latter, it is hard to imagine someone failing to recognize King's particular form of lawbreaking as the exemplary behavior it is.

Conclusion

Given that legitimate and illegitimate regimes can each have just and unjust laws, a citizen may be faced with four possibilities: (1) a just law imposed by an illegitimate regime, (2) an unjust law imposed by a legitimate regime, (3) an unjust law imposed by an illegitimate regime, and (4) a just law imposed by a legitimate regime. This chapter has analyzed the first two possibilities and concluded that there is a general duty to obey neither unjust laws nor the laws of an illegitimate regime. In addition, I have argued that a subject confronted with a just law in an illegitimate regime must weigh the reasons in favor of obeying this particular law against the moral reasons to subvert the regime in general. Similarly, I have suggested that a citizen facing an unjust law in a legitimate state must weigh the moral reasons to support the legitimate regime against the specific reasons to oppose this particular law.

The third and fourth possibilities are much less complex. Obviously, there is no general duty to obey an unjust law imposed by an illegitimate regime. In this case, the injustice of the law and the illegitimacy of the regime both provide reasons against legal obedience. Finally, nothing about the analysis in this chapter in any way undermines my core thesis that there is a general duty to obey the just laws of a legitimate regime. It is important to acknowledge, though, that things are not necessarily always simple even for a citizen facing a just law in a legitimate regime because, though *general*, the duty to obey such laws is clearly not *absolute*. In other words, although a citizen invariably has a duty to obey the just laws of a legitimate regime, this duty is liable to be overridden by a sufficiently urgent competing consideration.

When faced with a choice between either disrespecting her brother, Polynices, or disobeying a law prohibiting her from burying him, Sophocles' Antigone ultimately felt compelled to break the law. Similarly, E. M. Forster famously reflected: "If I had to choose between betraying my country and betraying my friend, I hope that I should have the guts to betray my country." Whatever one believes about the justness of the law Antigone faced, about whether she acted rightly, or about whether Forster would be right to betray his country in the name of friendship, the more general point remains: Surely there are some circumstances in which one's duty to obey the law could be overridden by a more stringent duty.⁴

My recognition that the duty to obey the law is not absolute in no way constitutes a retreat from my earlier thesis because the assertion that there is a *general* duty to obey the law does not commit one to the further, implausible claim that this duty is always and in every case *decisive*. Why think that the general duty to obey the law must be absolute when we do not suppose that this must be the case for other general duties, like the duty to keep one's promises? Indeed, given that virtually everyone appreciates that the general duty to fulfill one's valid promises can be overridden, it would be curious if anyone thought the duty to obey the law must be absolute. So, while one might regret that the moral path is not always simple and straightforward even for a citizen faced with a law whose content and pedigree are both unimpeachable, my conclusion remains intact: Just as valid promises create

4 Notice that it is not even true that the general duty to obey the just laws of a legitimate regime can be overridden only by a more stringent duty. As Frances Kamm has argued in her essay "Supererogation and Obligation" (*Journal of Philosophy* 82[3] [1985]: 118–38), for instance, there are cases in which one may permissibly ignore a duty in order to do something supererogatory. Although Donna's promise to meet Carol for lunch clearly gives her a duty to do so, for example, surely Donna would act rightly if she missed the date in order to rescue imperiled infants from a burning house that she came across on her way to meeting Carol. By the same token, presumably Donna would do no wrong if she broke the law against jaywalking as she ran across the street and into the burning house.

a general duty to act as promised, just laws in legitimate regimes create a general duty to act as the laws command.

Let me conclude by answering the question at hand: "Is there a duty to obey the law?" Yes, each of us is obligated to obey the just laws of a legitimate regime as her fair share of the communal samaritan chore of rescuing all of us from the perils of the state of nature.

